

(UMF and DMF 6-9.) The application of consistent standards in evaluating applications, and utilization of a fair, reasonable and expeditious process present issues of fact. Plaintiff fails to establish entitlement to a declaratory judgment finding the Association was deprived of the authority to act based asserted procedural deficiencies.

Plaintiff's motion for summary adjudication is denied.

Motion to Continue Trial

The parties are required to appear in court on **April 28, 2026 at 8:30 a.m. in Department 42.**

9. S-CV-0052243 Alpine View Estates v. Tonopalo Private Residence Club

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendant moves for summary judgment or, in the alternative, summary adjudication of the second amended complaint's only claim for declaratory relief, contending the undisputed material facts show defendant is entitled to judgment. Plaintiff opposes the motion.

Evidentiary Rulings

Defendant's request for judicial notice filed with its moving papers is granted.

Defendant's objections to the Taylor declaration are overruled in their entirety.

Defendant's request for judicial notice filed with its reply is granted. However, as to Exhibits I and J, the court takes judicial notice that these documents are filed court records; the court does not take judicial notice of the truth of the information therein.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) A party may move for summary adjudication as to one or more causes of action if the party contends the cause of action has no merit. (*Id.* subd. (f)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a

motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant presents evidence it is the owner of 6750 N. Lake Tahoe Blvd., Tahoe Vista, CA 96148 (“Tonopalo parcel”), which abuts the shore of Lake Tahoe, and plaintiff is the owner of 6731 N. Lake Tahoe Blvd., Tahoe Vista, CA 96148 (“Alpine parcel”), which does not. (SSUMF Nos. 1–3.) On March 18, 2002, defendant’s predecessor-in-interest Tonopalo LLC and plaintiff’s predecessor-in-interest Tahoe Real Estate Investment LLC (“TREI”) entered into an easement agreement, which was recorded, granting easement access across Alpine parcel to access Lake Tahoe. (SSUMF Nos. 3, 5.) The easement agreement was amended twice, and each amendment was likewise recorded. (SSUMF No. 6.) On October 6, 2003, plaintiff’s predecessor-in-interest TREI executed a Quitclaim Deed releasing the easement, which was likewise recorded. (SSUMF No. 7.) Plaintiff’s predecessor-in-interest Paul Klapper understood the Alpine parcel had no access across the Tonopalo parcel, but had tried to negotiate with defendant’s owner lake access across the Tonopalo parcel in exchange for parking and storage space on the Alpine parcel, but had not completed such an arrangement. (SSUMF Nos. 8–11; 12–16; 19–21.) Klapper had communicated to plaintiff’s owner, Mr. Taylor, that there was no lake access and provided an appraisal report by email on October 28, 2019 that noted there was no direct beach access. (SSUMF Nos. 10, 15–16.) Access to the Tonopalo parcel is restricted to its residents and their guests and since it opened in 2003 it has been openly and continuously maintained, improved, and developed by Tonopalo, including open and obvious blocked access to the easement area, including substantial improvements and structures, and “no one has ever been able to access the beach by going through this area, as it is completely blocked off.” (SSUMF Nos. 22–27.) Defendant and its members pay the property taxes for the Tonopalo parcel, including the area that would have been the easement area. (SSUMF No. 24.)

Defendant contends the alleged easement has long-since been abandoned. “Abandonment of an easement created by grant, as here, requires proof of (1) the cessation of use of the easement by the owner of the dominant tenement and (2) unequivocal and decisive acts on the part of the [dominant tenement], clearly showing an intention to abandon. [Citations.]” (*Visitacion Investment, LLC v. 424 Jessie Historic Properties, LLC* (2023) 92 Cal.App.5th 1081, 1090, internal quotation marks and citations omitted; see also Civ. Code, § 887.050.) “Although mere nonuse is insufficient to demonstrate an intent to abandon, a long period of nonuse may be considered as evidence of the necessary intent. [Citation.]” (*Visitacion, supra*, at p. 1090, citation omitted.) “Abandonment hinges upon the intent of the owner to forego all future conforming uses of the property.” (*Tract Development Services, Inc. v. Kepler* (1988) 199 Cal.App.3d 1374, 1380.) A servient tenement owner’s adverse use of an easement is a factor for the court to consider the dominant tenement’s intent to abandon the easement. (*Flanagan v. San Marcos Silk Co.* (1951) 106 Cal.App.2d 458, 463.)

Here, defendant submits evidence the owners of the dominant tenement have not used the easement since the servient tenement opened its business in 2003 and beach access is completely blocked off. (SSUMF Nos. 22–27.) Defendant also submits evidence that on October 6, 2003, plaintiff’s predecessor-in-interest, TREI, executed a quitclaim deed releasing the easement, which was recorded on November 4, 2003. (SSUMF No. 7.) This action was commenced on February 21, 2024, when the initial complaint was filed. This sufficiently shows, for the purposes of defendant’s initial burden, the dominant tenement’s nonuse from the time defendant opened in 2003 spanning more than 20 years to the filing of this action on February 21, 2024, a clear intent to abandon the easement by the execution and recordation of the quitclaim deed by plaintiff’s predecessor-in-interest, and the servient tenement’s adverse use of the easement area.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. Towards that end, plaintiff submits a responsive separate statement (“RSSUMF”) and a separate statement of additional material facts (“SSAMF”). Plaintiff argues the quitclaim deed was ineffective because it was only signed by one party when the easement agreement required both parties to sign. (SSAMF Nos. 3–5.) However, plaintiff’s predecessor-in-interest’s execution of a quitclaim deed is evidence of its intention to abandon the easement and, for this purpose, it is immaterial whether the quitclaim deed was effective. Plaintiff argues there is no admissible evidence that the owner and prior owners of the dominant tenement did not use the easement area for 20 years. However, plaintiff presents no evidence showing any owner of the dominant tenement used the easement area, so there is no evidence of a triable issue on this front. Plaintiff does present evidence, however, that its predecessor-in-interest Mr. Klapper was unaware of the easement agreement, the amendments thereto, or the quitclaim deed and that Mr. Klapper never communicated to plaintiff’s owner Mr. Taylor that he did not have beach access through defendant’s parcel or that he was negotiating an agreement for such. (RSSUMF No. 20.) As abandonment is a fact-specific inquiry where conflicting inferences from the facts must be tried to a trier of fact rather than disposed of by a motion for summary judgment (*Visitacion Investment LLC v. 424 Jessie Historic Properties LLC* (2023) 92 Cal.App.5th 1081, 1096), plaintiff’s evidence, in direct contradiction to defendant’s evidence, is sufficient to raise conflicting inferences to be drawn from the material facts. Plaintiff has sufficiently met its burden on the issue of abandonment.

Defendant contends, in the alternative, that the alleged easement has been extinguished by adverse possession. “An easement obtained by grant may be extinguished by adverse possession by owner of the servient tenement. [Citation.]” (*Sevier v. Locher* (1990) 222 Cal.App.3d 1082, 1084–85, citation omitted.) Adverse possession requires “(1) Possession must be by actual occupation under such circumstances as to constitute reasonable notice to the owner. (2) It must be hostile to the owner’s title. (3) The holder must claim the property as his own, under either color of title or claim of right. (4) Possession must be continuous and uninterrupted for five years. (5) The holder must pay all the taxes levied and assessed upon the property during the period. [Citation.]” (*Dimmick v. Dimmick* (1962) 58 Cal.2d 417, 421, citation omitted.) Defendant submits evidence that use of the easement area is restricted to its residents and their guests and

since it opened in 2003 it has been openly and continuously maintained, improved, and developed by Tonopalo, including open and obvious blocked access to the easement area, including substantial improvements and structures, and “no one has ever been able to access the beach by going through this area, as it is completely blocked off.” (SSUMF Nos. 22–27.) Defendant and its members pay the property taxes for the Tonopalo parcel, including the easement area. (SSUMF No. 24.) This sufficiently shows, for the purposes of defendant’s initial burden, that the easement has been extinguished by adverse possession.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. While plaintiff argues that a written easement agreement prevents adverse possession claims by establishing permissive use, an easement created by grant may be extinguished by adverse possession where the owner of the servient tenement nonpermissively erects and maintains permanent obstructions over the easement for the five-year period. (*Glatts v. Henson* (1948) 31 Cal.2d 368, 370–71.) Here, the erecting of structures over the easement area so as to block beach access is clearly without permission. Plaintiff falls short of its burden to show one or more triable issues of material fact as to adverse possession.

Defendant also contends plaintiff’s claim is time barred by any applicable statute of limitations. In light of the court’s above ruling on adverse possession which completely disposes of the only cause of action for declaratory relief, the court need not and does not render a decision on whether the action is barred by an applicable statute of limitations.

Based on the foregoing, defendant has shown entitlement to judgment and the motion for summary judgment is granted.

10. S-CV-0052963 Bardelmeier, Julie M v. Land Ocean Inc.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval of Class Action and PAGA Settlement

Plaintiff seeks preliminary approval of the parties’ class action and PAGA settlement agreement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)